CHAPTER 7

FEDERALISM

CHAPTER ESSENCE AT A GLANCE:
Analyze federal features with a strong central bias, three legislative lists (Seventh Schedule), inter-state disputes, Governor role, and Article 356 emergency dynamics.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Indian Federal Architecture:** Described as a 'Union of States' under Article 1, the Indian federation operates on a holding-together model balancing state autonomy with national integrity through asymmetric constitutional provisions.

• **Division of Powers under the Seventh Schedule:** Legislative competence is demarcated into the Union List (97 items, national defense, foreign affairs), State List (66 items, police, agriculture), and Concurrent List (47 items, education, forests), with residuary powers resting with the Union.

• **Unitary Features and Central Dominance:** Strong centralizing features include a single unified judiciary, single citizenship, All-India Services (IAS, IPS), emergency provisions, and the appointment of State Governors by the Union President.

• **Centre-State Frictions and Resolving Mechanisms:** Recurring tensions center on the partisan use of Article 356 (President's Rule), Governor's discretionary actions, financial dependency, and inter-state river water disputes, partially mitigated by the Sarkaria Commission and Inter-State Council.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Legislative Domain} \Leftrightarrow \text{Union List (Defence)} \cup \text{State List (Police)} \cup \text{Concurrent List (Education)}$$

Tripartite distribution of legislative authority under Article 246

$$\text{Concurrent Conflict} \Rightarrow \text{Union Statute Prevails} + \text{Residuary Powers} \rightarrow \text{Union Parliament}$$

Centralized constitutional supremacy mechanism resolving inter-governmental deadlock

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** Residuary powers in India are vested with the Union Parliament under Article 248, unlike in the United States or Australia where residuary powers belong to the states.

• **Alert:** The word 'Federation' is not used anywhere in the text of the Indian Constitution; Article 1 officially characterizes India as a 'Union of States'.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. Why is the Indian Constitution characterized as 'quasi-federal'? [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Federal Framework:** Possesses essential federal features such as dual governments, division of powers, written constitution, and independent judiciary. **[1 Mark]**

• **Unitary Tilt:** Contains strong centralizing features (single citizenship, emergency powers, central residuary authority) making it federal in form but unitary in spirit. **[1 Mark]**

2. Explain the three legislative lists provided in the Seventh Schedule of the Indian Constitution. [Score: 3 Marks]

Answer & Key Valuation Steps:

• **1. Union List:** Subjects of national importance requiring uniform legislation throughout the country (defence, foreign affairs, atomic energy, banking, currency). **[1 Mark]**

• **2. State List:** Subjects of local and regional importance where State Legislatures have primary lawmaking competence (police, public health, agriculture, prisons). **[1 Mark]**

• **3. Concurrent List:** Subjects where both Union and State Legislatures can make laws (education, forests, civil law); in case of conflict, Union law prevails. **[1 Mark]**

3. Identify four unitary features of the Indian Constitution that demonstrate a strong central government. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Single Integrated Judiciary:** A single hierarchy of courts enforces both central and state laws, with the Supreme Court at the apex. **[1 Mark]**

• **2. All-India Services (IAS, IPS):** Recruited centrally and appointed to key administrative posts in States, operating under Union disciplinary oversight. **[1 Mark]**

• **3. Governor Appointment:** The Governor is appointed by the Union President and holds office during presidential pleasure, acting as an agent of the Centre. **[1 Mark]**

• **4. Emergency Powers:** Under Articles 352, 356, and 360, the federal system can be converted into a completely unitary state during crises. **[1 Mark]**

4. Explain the key controversies surrounding the role and discretionary powers of the Governor in Centre-State relations. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **Dual Role Ambiguity:** The Governor acts as both the constitutional head of the State and an appointee of the Union Government, often causing political conflict. **[1 Mark]**

• **Discretion in Ministry Formation:** In hung assemblies, Governors have faced accusations of partisan bias in inviting leaders to form governments. **[1 Mark]**

• **Recommending Article 356:** Recommending President's Rule without exploring alternatives has historically led to arbitrary dismissal of elected State governments. **[1 Mark]**

• **Withholding Assent to State Bills:** Reserving State legislative bills for presidential consideration delays state policy programs. **[1 Mark]**

5. Discuss the causes of inter-state conflicts in India with special reference to river water disputes and explain the constitutional mechanisms to resolve them. [Score: 5 Marks]

Answer & Key Valuation Steps:

• **Resource Scarcity Pressures:** Growing agricultural, industrial, and municipal water needs turn shared river basins into intense friction points among riparian states. **[1 Mark]**

• **Prominent Examples:** Cauvery dispute between Tamil Nadu and Karnataka, and Krishna and Godavari disputes between Andhra Pradesh, Telangana, and Maharashtra. **[1 Mark]**

• **Article 262 Adjudication:** Empowers Parliament to provide by law for the adjudication of any dispute regarding the use, distribution, or control of inter-state river waters. **[1 Mark]**

• **Inter-State River Water Disputes Act:** Parliament enacted legislation creating specialized tribunals to investigate claims and issue binding river water awards. **[1 Mark]**

• **Inter-State Council (Article 263):** Established to foster cooperative federalism, investigate common policy matters, and facilitate dialogue among chief ministers. **[1 Mark]**

6. Critically evaluate the use and misuse of Article 356 (President's Rule) in India. How did the S. R. Bommai judgment curb arbitrary federal interventions? [Score: 6 Marks]

Answer & Key Valuation Steps:

• **Constitutional Intent:** Article 356 was envisaged by Dr. Ambedkar as a 'dead letter' to be used strictly when constitutional machinery in a State truly broke down. **[1 Mark]**

• **Historical Misuse:** Repeatedly invoked by ruling central parties to arbitrarily dismiss opposition-ruled State governments, undermining democratic federalism. **[1.5 Marks]**

• **S. R. Bommai Verdict (1994):** A landmark nine-judge Supreme Court ruling establishing that presidential proclamation under Article 356 is subject to judicial review. **[1.5 Marks]**

• **Floor Test Mandate:** Ruled that the only constitutionally valid method to test a Chief Minister's majority is a floor test on the floor of the Legislative Assembly. **[1 Mark]**

• **Restoration Power:** The Court held that if an invocation of Article 356 is found unconstitutional, the dismissed State government and dissolved Assembly can be revived. **[1 Mark]**